

The Shore Nuisances (Bombay and Kolaba) Act, 1853

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State of Maharashtra - Act

The Shore Nuisances (Bombay and Kolaba) Act, 1853

MAHARASHTRA

India

The Shore Nuisances (Bombay and Kolaba) Act, 1853

Act 11 of 1853

Published on 15 July 1853

Commenced on 15 July 1853

[This is the version of this document from 15 July 1853.]

[Note: The original publication document is not available and this content could not be verified.]

The Shore Nuisances (Bombay and Kolaba) Act, 1853

Maharashtra Act

No. 11 of 1853

[15th July, 1853]

This Act so far as it relates to the removal of any obstruction, impediment or public nuisance affecting, or likely to affect the navigation of the port of Bombay, was repealed by Act 22 of 1855. The short title was given by Bombay 2 of 1921.

An Act to facilitate the removal of nuisances and encroachments below high-water mark in the Islands of Bombay and Kolaba.

Preamble

Wheres there is a large sea-shore in the islands of Bombay and Kolaba, and it is expedient, with a view to the safe navigation of the harbour of Bombay, and to the public interests generally, to facilitate the removal of nuisances,

obstructions and encroachments below high-water mark in the said harbour, or upon or about the shores of the said island; It is enacted as follows:-

1.

Power to give notice to remove nuisance.

Mode of giving notice.

Contents.

Form.

It shall be lawful for the Collector of Land-revenue at Bombay to give notice requiring the removal of any nuisance, obstruction or encroachment anywhere below high-water mark in the said harbour of Bombay, or upon or about the shores of the said islands; such notice shall be given by affixing the same in some conspicuous place on or near to the encroachment, obstruction or nuisance complained of, and by publication thereof in the [Official Gazette]

[The words 'Official Gazette' were substituted for the words 'Bombay Government Gazette' by the Adaptation of Indian Laws Order in Council.]

, and shall state that, unless the nuisance, obstruction or encroachment be removed or abated within one month, the same will be removed or abated by the said Collector; such notice may be in the Form No. 1, in Schedule to this Act annexed, or to the like effect.

2.

Petition by person denying right to remove nuisance.

- If any person shall deny the right of the said Collector to effect such abatement or removal, he shall, within one month after such notice shall have been given as aforesaid, apply to the Supreme Court of Judicature at Bombay by petition, setting forth the grounds of his alleged right and praying that the said Collector may be restrained from causing such abatement or removal; and the said Court may thereupon (on the petitioner's giving sufficient security for costs), fix a time for hearing and adjudicating upon such petition, and give such directions and make such orders as the said Court may think just and the said Court may also make an order for restraining the alleged nuisance, obstructions or encroachment from being extended, or from being abated or removed by the said Collector, until after adjudication upon the said petition, or the dismissal thereof for want of prosecution.

3.

Onus of proving right.

- Upon the hearing of every such petition, the onus of proving the alleged right shall be on the petitioner.

4.

Limitation of time for petition.

- No person shall be allowed after the expiration of such period of one month, to present any such petition as aforesaid, unless on satisfactorily accounting to the said Court for the delay.

5.

When Collector may cause removal of nuisances.

Form of warrant.

Indemnity.

If no such petition shall be presented within the said period of one month, or if the same be presented and determined against the right of the petitioner, or be dismissed for want of prosecution, it shall be lawful for the Collector to cause such abatement or removal as aforesaid by any person or persons to be authorised by warrant under his hand, and such warrant may be in the form No. 2 in the Schedule to this Act annexed, or to the like effect; and the said Collector, and any person acting under his warrant, shall not be answerable for any damage unavoidably occasioned in the removal of any such nuisance, obstruction or encroachment.

6.

Power to sell materials of any encroachment.

- The said Collector may sell the materials of any encroachment or obstruction removed under this Act, and may apply the proceeds of sale in or towards payment of the expenses of the removal, and if any surplus shall remain, the same shall be forfeited, and be paid and applied in such manner as the [Central Government]

[The words 'Central Government' were substituted for the words 'Governor of Bombay in Council' by the Adaptation of Indian Laws Order in Council.]

shall direct.

7.

Saving of rights of Crown.

- Nothing in this Act shall prejudice or affect the rights of [* * * *]

[The words 'the East India Company as trustees for' were repealed by the Repealing Act, 1870 (14 of 1870).]

the Crown in any part of the said harbour, or of the sea-shore of the said island, or preclude or interfere with any such proceedings civil or criminal, for abating such nuisances and encroachments as aforesaid, as might have been had if this Act had not been passed.

8.

"High-water mark" defined.

- The words 'high-water mark' in this Act shall mean the ordinary line of high-water at monsoon tides.

Schedule

Form No. 1

Notice is hereby given by the Collector of Land-revenue in Bombay, under Act No. XI of 1853, that (describe the encroachments) is to be removed or abated within one month from the date hereof; otherwise the same will be removed or abated by the said Collector under the authority of the said Act.

Dated the _____ day of _____ in the year of our Lord

(Signature of Collector)

Form No. 2

This warrant, granted by the Collector of Land-revenue in Bombay, under Act No. XI of 1853 is to authorise _____ to remove (describe encroachment).

(Signature of Collector)

Dated

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